

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 29, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Collins and Mr. Pierson. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance, led by members of the Mayor's Youth Council, was recited.

Expression of Appreciation to Mayor's Youth Council and State of the Youth report. Mayor Kaysen and Jan Spires, Mayor's Youth Council Coordinator, commended members of the 2011-2012 Mayor's Youth Council and presented those members present with a certificate and gift of appreciation. Those recognized were: Dean Jackson - Chair, Ian Dome - Vice-Chair, John Matsen - Co-Secretary, Tyler Bedwell, Juliette Givhan, Joey Marchand, Robert McGarry, McKinzea Olsen, Jacob Peterson and Gary Saylor. Those members unable to attend were: Kadi Davis - Co-Secretary, Addie Fleming and Margarita Medrano. Mr. Jackson provided a State of the Youth report and described various activities and issues the group was involved in during the past year. He noted members learned valuable lessons with regard to leadership and educational experiences that included involvement with local government staff, tours of several City facilities and operations, and participation in community efforts. Mr. Jackson was presented with a plaque recognizing his service during the past school year as chair of the Youth Council. Mayor Kaysen expressed appreciation to members for their time, commitment and dedication, and also to members' families for their support.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Allen and Ms. Broyles, agenda item #17 was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 14, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry regarding a voucher payable to Greenscape Designs, LLC, Matt Ashby, Planning Services Director, and Mayor Kaysen provided information on the project (i.e. West Lincolnway Southside Landscaping - corridor beautification). They also provided information on a previous project initiated by WYDOT for similar efforts along West Lincolnway involving status of the irrigation system, replacement of trees and/or shrubs relative to warranty coverage, and watering of same. In response to inquiry regarding a voucher payable to Fort Collins Wholesale Nursery, Rick Parish, Parks and Recreation Director, advised he

would research the purpose of utilizing the non-local vendor and provide information to City Council members. Upon inquiry regarding a voucher payable to Long Building Technologies and in conjunction with information provided by Vicki Nemecek, Assistant Director, Public Works Department, request was made to provide Council members with a written report on the status of the energy efficiency project and recognized savings. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a Public Hearing to receive public comments and input for a restaurant liquor license application filed with the City Clerk's Office for Judi Bufkin d/b/a Judi's Cajun Kitchen, 1719 Central Ave., Cheyenne, Wyoming. Upon inquiry, it was noted the applicant was not in attendance at the meeting. There being no further comments or input, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Ordinance amending the City of Cheyenne's Sanitation Fee Schedule. Jim Elias, Public Works Director, verified that the proposed 4.1% increase involved "rounding" of some numbers, which is why the amounts proposed are even numbers. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present. (#3947)

Ordinance approving and establishing revised water rates, sewer rates, tap fees, system development fees, administrative fees, service charges and penalties and septic and commercial dump rates, as recommended by the Board of Public Utilities. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code by changing the zoning classification from MUB Mixed-Use Business-Emphasis District to MR-2 Medium-Density Residential-Developing District for Diamond Estates, 3rd Filing, a replat of the North 147.16 feet of Tract 327, Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Fillmore Avenue and Rock Springs Street). Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance amending Ordinance No. 3925 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne -- referred to Finance Committee (sponsors - Mr. Brown and Mayor Kaysen).

Ordinance amending Ordinance No. 3926 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department -- referred to Finance Committee (sponsors - Mr. Brown and Mayor Kaysen).

Ordinance appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2012, and ending June 30, 2013 -- referred to Finance Committee (sponsor - Mr. Brown). A summary of proposed funds and budget amounts are as follows: General Fund \$49,560,879; Weed and Pest \$480,130; Youth Alternatives Grants \$392,390; Community Facility

Fees \$2,687,256; Recreation Programs \$978,024; Community Development Block Grant \$375,173; 1% Sales Tax Fund \$10,324,654; Solid Waste Management Fund \$5,357,688; Law Enforcement Grants \$233,488; Transportation Planning \$910,775; FTA Transit Grant \$1,666,552; Juvenile Justice \$384,043; Special Friends \$132,984; Special Purpose Option Tax \$138,977; Youth Activities \$13,100; Golf Facilities \$201,000; Civic Center \$961,248; Ice and Events Center \$502,125; Cemetery Perpetual Fund \$20,000. Total City proposed budget \$75,320,486. Water Department \$26,288,300; Sewer Department \$15,787,600. Total Board of Public Utilities proposed budget \$42,075,900. Total proposed budget appropriations \$117,396,386.

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5386)

[CA] Resolution authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311. Motion (per Consent Agenda) carried. (#5387)

Resolution approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2012 and ending June 30, 2013. John Sundahl, DDA Board President, noted supplemental budget information that had been provided to governing body members prior to the beginning of the meeting (information on file with office of City Clerk), and discussed proposed DDA administrative staff compensation increases included in the budget. He requested support for approval of the proposed budget and provided information on the number of DDA employees (2 full-time; 3 part-time) and their duties, and noted staff cost-saving efforts in such areas as in-house marketing. Mr. Sundahl also discussed anticipated additional staff duties during the next budget year due to planned membership in the Main Street program; District property tax mill levy monies to be received within the next year; estimated Fiscal Year (FY) 2013 revenue amount (\$481,220.00) to be received from TIF (Tax Increment Financing) sales tax funding and point of sales issues currently being determined; past administrative staff services provided under contract vs. direct employee relationship, which has been in effect since hiring of the current executive director, and amount of TIF funds (estimated \$280,000.00) which will be provided back to the City by the DDA for certain identified programs/projects. Upon inquiry, Christie DePoorter, DDA Executive Director, provided information on the amount of DDA budget reserves, explaining the level of current reserves and carry-over amounts, and anticipated parking revenue. During comments and upon inquiry, Lois Huff, City Treasurer, expressed her belief that the amount of anticipated revenue from FY 2013 TIF funding should be in the estimated amount of \$473,280.00 based upon information received from the state and her calculations. Inquiries included the following topics: Level of DDA budget reserves; amount of projected TIF revenue, and staff in-house marketing efforts vs. professional media assistance. Ms. DePoorter and Mr. Sundahl provided additional information in response to questions with Mr. Sundahl noting that DDA has scheduled a meeting on June 6th with governing body members to review DDA activities/programs and provide a measurement briefing. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Discussion topics included: Approval of the proposed DDA FY budget pursuant to Wyoming Statutes and City Code; proposed percentage of salary increases for DDA staff; anticipated cost of the Main Street program and assistance through the Wyoming Business Council; adjusting the proposed budget amount for projected TIF revenue; TIF funds submitted by the City to DDA and the portion DDA then returns to the City; concern with approving DDA staff salary increases relative to the City's proposed FY 2013 budget which does not provide for City employee increases, and suggestion that the resolution be postponed to further review the proposed budget and

supplement information received just prior to the meeting. During discussion information was provided by Mr. Sundahl and Ms. DePoorter relative to the percentage of proposed salary increase per position; possible Main Street grant funds that may be available; potential adjustment of estimated TIF revenue amount due to discussions being held, and past DDA staff arrangements relative to compensation and benefits. Ms. Ash moved to postpone to June 11, 2012, seconded by Mr. Allen. It was noted a postponement would allow for additional information to be received pursuant to the previously noted June 6th meeting. Request was made that the DDA Board consider adjusting the budget amount for projected TIF revenue. Motion to postpone carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Valdez voting "no."

[CA] Resolution authorizing and adopting Post-Issuance Compliance Policies and Procedures for Tax-Exempt Bonds and other Tax-Exempt obligations. Motion (per Consent Agenda) carried. (#5388)

Resolution authorizing the Issuance and Sale by the City of Cheyenne, Wyoming, of Refunding Revenue Bonds, Series 2012, dated June 5, 2012 in a principal amount not to exceed \$9,325,000, for the purpose of advance refunding and defeasing the City's Refunding and Improvement Revenue Bonds, Series 2003; prescribing the form of said Series 2012 Bonds; providing for the payment of the principal and interest thereon; and ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof. Mr. Brown moved to adopt, seconded by Mr. Spiker. Mr. Brown moved to amend by substitute, seconded by Mr. Spiker. It was noted the substitute provides for corrections and inclusion of interest rates pursuant to sale of the bonds. Entitlement of the substitute Resolution is as follows: "A Resolution authorizing the Issuance and Sale by the City of Cheyenne, Wyoming, of Refunding Revenue Bonds, Series 2012, dated June 12, 2012 in a principal amount not to exceed \$9,455,000 for the purpose of advance refunding and defeasing the City's Outstanding Refunding and Improvement Revenue Bonds, Series 2003; prescribing the form of said Series 2012 Bonds; providing for the payment of the principal and interest thereon; and ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof." Dan Baxter, Kaiser and Company, advised all of the bonds have been sold with a number of local banks involved; reviewed the different interest rates per maturity year, and stated the refunding of bonds has resulted in a 12% savings to the City. He further provided information on average interest rate and yield, and savings recognized. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body present. Upon inquiry, Mr. Baxter reviewed the bond payment date schedule, which is in April and October, noting the due dates are the same as the initial (Series 2003) bond payment schedule. Main motion, as amended, carried. Voting "yes" -- all members of the governing body present. (#5389)

[CA] Resolution certifying that the Governing Body of the City of Cheyenne has agreed on City projects to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5390)

Resolution certifying that the Governing Body of the City of Cheyenne has agreed on City projects to be on the substitute list for 2013-2014 Countywide Consensus Block Grant funding. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend the priority order of projects on the substitute list attached with the resolution by moving the Lake Minnehaha Remediation Project to #1 and the Snyder Avenue Storm Sewer Project to #2, seconded by Ms. Broyles. Vicki Nemecek, Assistant Director, Public Works Department, requested the original substitute list as submitted (re: Prioritization of Snyder Avenue Project as #1 and Lake Minnehaha

Project as #2) be considered, advising that keeping the Snyder Avenue Project as the #1 priority would allow for maximizing of funds through grant applications. She noted the Snyder Avenue Project is linked with the Capital Basin Drainage Project, which will be considered by voters for the 6th penny sales tax question included on the Primary Election ballot in August. Comment was made in support of the original prioritization of projects. Motion to amend the priority order of projects on the substitute list failed. Voting “no” -- all members of the governing body present. Motion to adopt the resolution with the prioritization of projects on the substitute list as initially submitted carried. Voting “yes” -- all members of the governing body present. (#5391)

Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the N½ of the N½ of the NE¼ of the NE¼ of Section 11, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (generally located at the end of West 5th Street, west of Southwest Drive, a/k/a 4121 W. 5th Street). Ms. Ash moved to adopt, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#5392)

[CA] Resolution amending the City of Cheyenne Annual Action Plans for Fiscal Years 2009-2010 and 2011-2012 to utilize Community Development Block Grant (CDBG) unprogrammed funds for an out-of-cycle grant. Motion (per Consent Agenda) carried. (#5393)

[CA] Resolution amending the City of Cheyenne Annual Action Plan for Fiscal Year 2011-2012. Motion (per Consent Agenda) carried. (#5394)

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for M Robbins Subdivision, a replat of Tract 27, Artesian Tracts, Laramie County, Wyoming (located north of and adjacent to East Nation Road, between South Greeley Highway and Avenue B-6). Ms. Ash moved to adopt with staff recommendation #1, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#5395)

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Welchester Subdivision, a replat of the West Half of Tract 21, Crestmoor, Laramie County, Wyoming (located south of and adjacent to Welchester Drive, west of College Drive). Ms. Ash moved to adopt with staff recommendations #1, 2 and 3, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present. (#5396)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Lewis Subdivision, a replat of the south 127.41-feet of Tract 6, Evans Subdivision, Cheyenne, Wyoming (located at the northeast corner of Wills Road and Laramie Street). Motion (per Consent Agenda) carried. (#5397)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Kum & Go 952 Subdivision, a replat of Lots 2A and 2B, Stephens Addition and a portion of the Northwest 1/4 of Section 34, Township 14 North, Range 66 West, of the Sixth Principal Meridian, Cheyenne, Wyoming (located at the northwest corner of East Lincolnway and Ridge Road). Doug Vetter, City Engineer, provided information on the need for a traffic impact study, pursuant to discussion at Public Services Committee, as this is a high traffic area; stated the information will be useful as affiliated with review of the site plan, and requested support for inclusion of all of the original staff recommendations (i.e. #1 and 2 (a)(b)(c)(d)). Ms. Ash moved to adopt with staff recommendations #1 and 2 (a), seconded by Dr. Rinne. Ms. Broyles moved to amend by also including staff

recommendations #2 (b)(c) and (d), seconded by Mr. Brown. Provisions of staff recommendations #2 (b)(c) and (d) were recited. Casey Palma, Development office, clarified that although specific wording of the staff recommendations as submitted may have been confusing, the provisions generally are part of a standard traffic study. Motion to amend carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Ash voting "no". Main motion as amended (to include adoption with staff recommendations #1 and #2 (a)(b)(c) and (d)) carried. Voting "yes" -- all members of the governing body present. (#5398)

[CA] Resolution amending Resolution No. 5140 pertaining to adoption of a revised fee schedule for inspection services, permits and other various services provided by the Cheyenne-Laramie County Board of Health -- referred to Finance Committee (sponsors - Mr. Valdez and Mr. Pierson).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, 3rd Filing, a replat of the North 147.16 feet of Tract 327, Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rock Springs Street and Fillmore Avenue) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution approving Sanitary Sewer Service, by User's Agreement, for Jason Earley and Laura Morton, 3307 Hayes Avenue, Cheyenne, Wyoming -- referred to Finance Committee (sponsors - Mr. Brown, Mr. Pierson and Mr. Valdez).

[CA] Resolution supporting the City of Cheyenne's application for Transportation Enhancement Activities-Local (TEAL) funds for implementation of Phase I of the On-Street Bicycle System -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Naranjo Civil Contractors and Ayres Associates, Inc., for the design and construction of Saddle Ridge Greenway, Phase I (Community Facility fees). Motion (per Consent Agenda) carried (amount not to exceed \$126,351.00). (#5847)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of the parking lot located on the F.E. Warren Air Force Base for public transportation service during the 2012 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5848)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2012 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5849)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2012 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5850)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for usage of city-owned land and buildings for parking, camping and other activities associated with the 2012 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#5851)

[CA] Contract between the City of Cheyenne and The Hartford for life and supplemental insurance coverage for full time city employees. Motion (per Consent Agenda) carried. (#5852)

[CA] Contract between the City of Cheyenne and Delta Dental of Wyoming for dental coverage for full time city employees. Motion (per Consent Agenda) carried. (#5853)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No.1 to provide transportation services for the City's Summer Recreation Camp Program. Motion (per Consent Agenda) carried. (#5854)

[CA] Amended and Restated Lease Agreement between the City of Cheyenne and Safehouse Services for the lease of City-owned real property located at 714 West Fox Farm Road, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production color copier -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for public performances and rehearsals -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5800 between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists, Inc., for Powers Field Storage Shed (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,906.00). (#5800)

[CA] Amendment Number One to Funding Agreement, Contract No. 5657, between the City of Cheyenne and Wyoming Department of Transportation for the East Pershing Boulevard Reconstruction Project (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Motion (per Consent Agenda) carried. (#5657)

[CA] Amendment No. 3 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement until August 31, 2012, and to reduce the compensation for services -- referred to Finance Committee.

[CA] Consideration of Bid #R-38-12 for the sale of surplus property described as the South 66 ft. of Lots 9, 10 and 11, Block 666, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 515 Morrie Avenue). Motion (per Consent Agenda) carried (accept bid submitted by Tara L. Curry, Cheyenne, Wyoming; revenue to the City \$41,231.62).

[CA] Consideration of Bid #R-39-12 for the sale of surplus property described as All of Lots 19 and 20, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 916 E. 5th Street). Motion (per Consent Agenda) carried (accept bid submitted by Tara L. Curry, Cheyenne, Wyoming; revenue to the City \$41,321.32).

[CA] Consideration of Bid #R-40-12 for the sale of surplus property described as All of Lots 21

and 22, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 922 E. 5th Street). Motion (per Consent Agenda) carried (accept bid submitted by Tara L. Curry, Cheyenne, Wyoming; revenue to the City \$51,321.46).

Consideration of Bid #M-16-12 for a contract between the City of Cheyenne, Public Works Department, 1% Construction Division, and JTL Group Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2012 Milling and Utility Adjustments Project for Street and Alley Division (2007-2010, 2011-2014 1% Sales Tax). Kim Stevens, 1% Construction Division, requested bids be rejected, advising the project work has been included in the overlay project at a lower rate than the bids that had been submitted. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to reject all bids that had been submitted, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Consideration of Bid #M-17-12 for a contract between the City of Cheyenne, Public Works Department, 1% Construction Division, and S&S Builders, LLC, of Cheyenne, Wyoming, for the Fiscal Year 2012 Miscellaneous Concrete/Intersection Repair Project (2007-2010, 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$404,950.76). (#5855)

[CA] Consideration of Bid #M-15-12 for a contract between City of Cheyenne, Public Works Department, 1% Construction Division, and JTL Group, Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2012 City Overlay Project (2007-2010, 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,436,511.19). (#5856)

[CA] Consideration of Bid #R-34-12 for furnishing three new 2012 cab and chassis with rear load sanitation refuse collection bodies with tippers for the Sanitation Division from Peterbilt of Wyoming, Cheyenne, Wyoming (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$482,702.00).

[CA] Consideration of Bid #R-42-12 for furnishing three new pickup trucks for the Sanitation Division from Spradley Barr Motors, Cheyenne, Wyoming (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Consideration of Bid #M-21-12 for a contract between the City of Cheyenne, Engineering Department, and Kolbe Striping, Castle Rock, Colorado, for the 2012 Pavement Marking Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

Appointment of Michael R. O'Donnell to the Board of Adjustment. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Under other business, inquiry from Council members was made relative to the street condition on a portion of Snyder Avenue, south of Pershing Blvd., and warranty of certain landscaping plantings on West Lincolnway pursuant to a WYDOT improvement project that was accepted by the City following project completion relative to maintenance of the beautification areas along the corridor. Kim Stevens, 1% Construction, advised she would conduct a site inspection of the area of concern involving Snyder Avenue and report her findings to Council members. Rick Parish, Director of Parks and Recreation; Doug Vetter, City Engineer, and Mayor Kaysen provided information with regard to status of the West Lincolnway beautification corridor area regarding replacement of landscaping involving the warranty issue; number of trees and shrubs affected;

communications with WYDOT and the landscaping provider; elements that contributed to the need for replacement of items, and optimum season for planting of trees and shrubs as utilized by the Parks and Recreation Department.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:30 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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